

<i>Term</i>	<i>Abbreviation</i>
Code of Criminal Procedure	CrPC
Code of Civil Procedure, 1908	CPC
Bharatiya Nyaya Sanhita, 2023	BNS
Bharatiya Nagarik Suraksha Sanhita, 2023	BNSS
Indian Contract Act, 1872	ICA
Indian Succession Act, 1925	ISA
Indian Penal Code, 1860	IPC
Indian Evidence Act, 1872	IEA
Bharatiya Sakshya Adhiniyam, 2023	BSA
Hindu Succession Act, 1956	HSA
Supreme Court Cases	SCC
Supreme Court	SC
All India Reporter	AIR
Maharashtra Law Journal	Mah LJ
Supreme Court Reporter	SCR
Civil Law Times	Civ LT
Bombay Law Reporter	Bom LR
All India High Court Cases	AIHC
Bombay Cases Reporter	Bom CR
Civil	Civ

<i>Term</i>	<i>Abbreviation</i>
Criminal	Cri
Income Tax Reports	ITR
Delhi Law Times	DLT
Justice	J.
Justices	JJ.
Equivalent Citation	EC
Paragraph	P.
Number	No
Numbers	Nos
Union of India	UoI
Reported in	R/i
Prevention of Money Laundering Act, 2002	PMLA
Read with	R/w
In regards	Re.
Company Cases	CC
Central Bureau of Investigation	CBI
Unlawful Activities (Prevention) Act, 1967	UAPA
Investigating Officer	IO
Section	S.
Sections	Ss.

<i>Term</i>	<i>Abbreviation</i>
Special Leave Petition	SLP

Arbitration

S. 34

1. Oil & Natural Gas Corporation Ltd *v.* Saw

Pipes Ltd; **2 J.** (2003) 5 SCC 705; P.Nos

Arrest

Ss.

Effects of arrest

1. Arnesh Kumar v. State of Bihar; **J.**; (2014) 8 SCC 273; P.No
2. Satendra Kumar Antil v. CBI; **J.**; (2022) 10 SCC 51 : (2023) 1 SCC (Cri) 1; P.No (may not be under effects of arrest)

Guidelines re. Rights of an arrested person

1. Joginder Kumar v. State of U.P.; **J.**; (1994) 4 SCC 260 : 1994 SCC (Cri) 1172; P.No

Grounds for arrest in writing mandatory in every offence under all

***statutes no later than 2 hours prior to
production before Court***

Art. 22; s. 50, 50-A CrPC (47, 48 BNSS); s. 19
PMLA; 43-A & 43-B UAPA

1. Pankaj Bansal *v.* Union of India and Others;

2 J.; r/i (2024) 7 SCC 576 : (2024) 3 SCC

(Cri) 450 : 2023 SCC OnLine SC 1244; P.NO

Effect of arrest on person, P.No 39 to 45, **42**

& 43

Discussion (s. 19 r/w 45 PMLA), P.No 38

Discussion, P. Nos 38 to 45

Held prospective, *Ram Kishor Arora v.*

Enforcement Directorate; r/i (2024) 7 SCC

599; P.No

Held, overruled *Moin Akhtar Qureshi v.*

UoI (2017) SCC OnLine Del 12108 & *Chagan*

Chandrakant Bhujbal v. UoI 2016 SCC

OnLine Bom 9938; P.No 45

2. *Prabir Purkayastha v. State (NCT of Delhi)*;

2 J.; (2024) 8 SCC 254 : (2024) 3 SCC (Sri)

573 : 2024 SCC OnLine 934; P.Nos **21**, 26 to

30

Held, overruled *Moin Akhtar Qureshi v.*

UoI (2017) SCC OnLine Del 12108 & *Chagan*

Chandrakant Bhujbal v. UoI 2016 SCC

OnLine Bom 9938; P.No 26

3. *Vihaan Kumar v. State of Haryana*; **2 J.**; r/i

(2025) 5 SCC 799 : (2025) 2 SCC (Cri) 762 :

2025 SCC OnLine SC 269; P.Nos **19**, **26**, 18

to 25

Rules, P.No 26

Constitutional requirement, P.No 26.1

Vitiating of arrest & violation of

Fundamental Rights, P.No 26.4

Content of grounds, P.No 26.2

Allegation of non compliance, burden on IO/

Agency, P.No 26.3

Duties of Court; P.No 26.5 & 26.6

4. Mihir Rajesh Shah *v.* State of Maharashtra and Another; **2 J.**; r/i (2026) 1 SCC 500 : (2026) 1 SCC (Cri) 1 : 2025 SCC OnLine SC 2356; P.Nos 47, 48, 55, 62, 64, 65, & 66
Arrest vitiated for noncompliance, P. No 65, & 66.4

Effect of arrest on person, P.No 32 & 33

Discussion, P.Nos 32 to 65

Held, overruled *Moin Akhtar Qureshi v.*

UoI (2017) SCC OnLine Del 12108 & *Chagan*

Chandrakant Bhujbal v. UoI 2016 SCC

OnLine Bom 9938; P.No 26

5. Jaskaran Jeet Singh Deol *v.* State of Punjab;
2 J.; r/i 2026 INSC 1022 [Cri Appeal No
4234 OF 2026, Arising out of SLP (Cri) No
11103 of 2026]; P.No 23

***Written grounds of arrest to be in
language accused can understand***

1. Harikisan *v.* State of Maharashtra; **J.**; r/i
1962 SCC OnLine SC 117; P.No 7 (read
further)
2. Hadibandhu Das *v.* District Magistrate,
Cuttack; **J.**; r/i 1968 SCC OnLine 136; P.No
3. Lallubhai Jogibhai Patel *v.* Union of India;
J.; r/i (1981) 2 SCC 427 : 1981 SCC (Cri)
463 : (1982) 52 CC 543; P.No 20 (read
further)

***Process for rearrest when original arrest
is vitiated for not providing grounds of
arrest as required by law to arrestee***

1. Jaskaran Jeet Singh Deol v. State of Punjab;
2 J.; r/i 2026 INSC 1022 [Cri Appeal No
4234 OF 2026, Arising out of SLP (Cri) No
11103 of 2026]; P.No 24 & 25
Compensation public law remedy; P.No 36
- 2.

Custodial Interrogation

Not for the purpose of confession

1. Santosh *v.* State of Maharashtra; **J.**; r/i
(2017) 9 SCC 714 : (2018) 1 SCC (Cri) 87;
P.No
- 2.

Exercise of Power

What is mala fides in jurisprudence of power?

1. State of Punjab *v.* Gurdial Singh; **J.**; r/i
(1980) 2 SCC 471; P.No
2. Ravi Yashwant Bhoir *v.* Collector; **J.**; r/i
(2012) 4 SCC 407; P.No
3. Collector (DM) *v.* Raja Ram Jaiswal; **J.**; r/i
(1985) 3 SCC 1; P.No

Forum Shopping

1. Kamini Jaiswal v. Union of India and Another; **3 J**; r/i (2018) 1 SCC 156 : (2018) 1 SCC (Cri) 297 : 2017 SCC OnLine SC 1322; P.No 27
- 2.

Fundamental Rights

1. Roy V.D. *v.* State of Kerala; **J.**; (2008) 8 SCC 590 : 2001 SCC (Cri) 42; P.No 7 (read further)

Preventive Detention Art. 22 (2) & (5)

1. Prabir Purkayastha *v.* State (NCT of Delhi); **2 J.**; (2024) 8 SCC 254 : (2024) 3 SCC (Sri) 573 : 2024 SCC OnLine 934; P.No 29
Detention illegal in case grounds not provided as in case of arrest

Compensation as part of the public law remedy in a case of violation of Article 22(2)

1. Jaskaran Jeet Singh Deol *v.* State of Punjab; **2 J.**; r/i 2026 INSC 1022 [Cri Appeal No

4234 OF 2026, Arising out of SLP (Cri) No
11103 of 2026]; P.No 36

2.

Legal Aid

***Accused not represented by an Advocate
is entitled legal aid***

1. Ashok v. State of U.P.; **J.**; (2025) 2 SCC
381 : (2025) 1 SCC (Cri) 744; P.No

2.

Pre Litigation Assistance

Guidelines for early access to justice

1. Suhas Chakma v. Union of India; **J.**; (2024)

16 SCC 1; P.No

- 2.

PMLA

***CrPC (now BNSS) applicable to PMLA
insofar as not inconsistent with
provisions of PMLA***

(S. 65 PMLA)

1. Vijay Madanlal Choudhary v. Union of India;
J.; (2023) 12 SCC 1 : 2022 SCC OnLine SC 929 :
(2022) 10 Scale 577; P.No

Preventive Detention

*Detention illegal if grounds to be
communicated as for arrest are not
communicated*

1. Prabir Purkayastha *v.* State (NCT of Delhi);
2 J.; (2024) 8 SCC 254 : (2024) 3 SCC (Sri)
573 : 2024 SCC OnLine 934; P.No 29
- 2.

Probate

Probate proceedings description

No inquiry into Title in probate

proceedings

1. Shanta G. Z. Mehta v. Sarla J. Mehta & Others; (2002) 10 SCC 730 : 2002 SCC OnLine 538; P.No 2
2. Eruch Rustom Irani v. Limji Kaikashroo Panday; (1993) 1 BCR 340 : 1992 SCC OnLine Bom 120 ; (1992) 2 Mah LJ 1198 : (1992) 94 Bom LR 351; P.No
3. Kamal Mahaling Patil v. Indubai Mahaling Patil and Others; **1 J.**; 2019 SCC OnLine Bom 954 : (2019) 5 Bom CR 583; P.No

Probate proceedings turn into a Suit on contest, however, the Court does not gain all the plenary powers

1. Rupali Mehta v. Smt. Tina Narinder Sain Mehta; (2006) 6 Mah LJ 786 : 2006 SCC OnLine Bom 846 : (2006) 6 Bom CR 778 : AIR 2007 Bom 62 : (2007) 3 All LJ (NOC 430) 157 : (2007) 1 AIR Bom R 223 : (2007) 2 AIR Jhar R (NOC 649) 232 : 2007 AIHC 449; P.Nos 9 & 10

During the pendency of probate proceedings, a Suit for relief (in regards property of the late testator) can be files & subsequently decreed or dismissed.

However, if decreed, the effect of the decree shall be suspended and effect of the decree shall be contingent on the

***probate proceedings and grant of
probate.***

1. Binapani Kar Chowdhury *v.* Satyabrata Basu
and Another, reported in (2006) 10 SCC 442
: 2006 SCC OnLine SC 607; P.No

Jurisdiction of Probate Court

1. Kamal Mahaling Patil *v.* Indubai Mahaling
Patil and Others; reported in 2019 SCC
OnLine Bom 954 : (2019) 5 Bom CR 583;
P.No

***Application for removal of executor
indicates the acceptance of the Will by
the Applicant***

1. Radhika Bhargava *v.* Dr. Arjun Sahgal;
reported in 2016 SCC OnLine Bom 9995 :
(2017) 3 Mah LJ 212 : (2017) 2 Bom CR

469 : (2017) 1 AIR Bom R 422 : (2017) 175
AIC 304 : (2017) 2 HLR 514 : (2017) 1 Civ LT
53; P.No

***In Parsi testamentary succession, if no
probate no executor***

S. 213 & 57 of the ISA

1. Clarence Pais and Others *v.* Union of India;
reported in (2001) 4 SCC 325 : 2001 SCC
OnLine SC 448; P.No
2. Gaiv Dinshaw Irani and Others *v.* Tehmtan
Irani and Others; reported in (2014) 8 SCC
294 : (2014) 4 SCC (Civ) 318 : 2014 SCC
OnLine SC 318; P.No

Remand

*Magistrate to satisfy himself whether
materials placed before him justify
remand*

1. Manubhai Ratilal Patel v. State of Gujarat; **J.**;
(2013) 1 SCC 314 : (2013) 1 SCC (Cri) 475; P.No

Res Judicata

S. 11 CPC

1. Har Narayan Tewari *v.* Ramgarh Cantonment

Board; **2 J.**; (2024) 8 SCC 114; P.No

Hindu Personal Law

***There can be multiple coparceneries
within an HUF/joint Hindu Family***

1. Bhagwan Dayal & Another *v.* Mst Reoti Devi; reported in (1961) SCC OnLine SC 52 : (1962) 3 SCR 440 : AIR 1962 SC 287 : (1962) 1 SCJ 348; P.No 47
2. N.V. Narendranath *v.* Commissioner of Wealth Tax, Andhra Pradesh; reported in (1969) 1 SCC 748 : (1969) 74 ITR 190 : 1969 SCC OnLine SC 130; P.No 9
3. Bhagwat Sharan *v.* Purushottam and Others; reported in (2020) 6 SCC 387 : 2020 SCC OnLine SC 348; P.No 13

4. M.R. Vinoda v. M.S. Susheelamma & Others,
reported in (2021) 20 SCC 180, P.Nos 15, 16,
& 17;

Distinguishing HUF & Coparcenery

1. Surjit Lal Chabda v. Commissioner of
Income Tax, Bombay; reported in (1976) 3
SCC 142 : 1976 SCC (Tax) 252 : (1975) 101
ITR 776 : 1775 SCC OnLine SC 381; P.No 13

Female coparcener can be Karta

1. Mrs. Sujata Sharma v. Shri Manu Gupta;
reported in 2015 SCC OnLine Del 14424 : (2016)
226 DLT 647 : (2016) 1 ICC 876 : (2016) 160
AIC 684 : (2016) 1 RCR (Civil) 1046 : (2016) 2
CCC 157 : (2016) 1 CCC 585 : (2016) 1 Civ LT
383; P.Nos 27, 28, & 30

Female member of HUF cannot 'Blend'

her property or throw it into the family

stock of coparcenery*

*(Pre 2005 Amendment position)

1. Pushpa Devi *v.* CIT, New Delhi; reported in
(1977) 4 SCC 184 : 1977 SCC (Tax) 568 :
(1977) 109 ITR 730 : 1977 SCC OnLine SC
250; P.No

Overruled Cases

1. Moin Akhtar Qureshi *v.* Union of India; r/i
2017 SCC OnLine Del 12108;
overruled ;
held, overruled *Mihir Rajesh Shah v. State
of Maharashtra*; r/i (2026) 1 SCC 500; P.No
26
2. Chagan Chandrakant Bhujbal *v.* Union of
India; 2016 SCC OnLine Bom 9938;
overruled ;
held, overruled *Mihir Rajesh Shah v. State
of Maharashtra*; r/i (2026) 1 SCC 500; P.No
26
- 3.